

Subject: RE: Bianchi
Date: Wednesday, February 12, 2025 at 2:35:42 PM Central Standard Time
From: Madyson Lehmann <MadysonLehmann@allenglassman.com>
To: Nick@aribia.llc <nick@aribia.llc>
CC: Jonathan Schatz <JonathanSchatz@allenglassman.com>, Joseph Luckett <JosephLuckett@allenglassman.com>

Hi Nick,

Here are my thoughts regarding your below points:

1. Financial Hardship & Undisclosed Income
 - a. We want to keep our response broad and simply deny her financial hardship, while also raising the point of additional income. We can request discovery on her income, where she will be required to provide information and documents regarding same.
2. TRO
 - a. This is more appropriate for the pretrial memo.
3. ARIBIA LLC Ownership & Business Standing
 - a. Again, we stated in our response that this business is non-marital. We do not need to nor want to get into detail as to the specific with this response. This information will be better served in the memo.
4. Fraud & Misuse of Funds
 - a. This is more appropriate for the pretrial memo.
5. Due Diligence & Business Impact
 - a. This is more appropriate for the pretrial memo.

A divorce is more of a marathon, than a sprint, so we do not need to disclose every detail relevant in our first responses. All of the information that you provided is important, and Jonathan and I will utilize those details strategically and at the appropriate time.

It is our advice that you sign the documents I am sending via docusign.

Mady

From: Nick <nick@aribia.llc>
Sent: Wednesday, February 12, 2025 2:21 PM
To: Madyson Lehmann <MadysonLehmann@allenglassman.com>
Cc: Jonathan Schatz <JonathanSchatz@allenglassman.com>; Joseph Luckett <JosephLuckett@allenglassman.com>
Subject: Re: Bianchi

Hi Madyson,

I want to start by expressing my appreciation for your guidance and patience throughout this process. I fully trust your judgment and experience in handling this, and my intent is not to complicate strategy but to ensure we aren't conceding anything that could be used against me later. That said, I feel strongly that certain inaccuracies should be addressed in some capacity to prevent a misleading narrative from gaining traction.

If the collective legal guidance is that raising these points now would be counterproductive or could weaken our position, I'll defer to that expertise. I simply lack the situational experience to gauge whether not correcting them at this stage could make things more difficult later. My priority is to protect my position while ensuring our approach remains strategically sound.

With that in mind, here are the key areas I'd like your guidance on incorporating, if appropriate:

1. Financial Hardship & Undisclosed Income

Consider adding language questioning the accuracy of Luisa's financial affidavit and requiring full disclosure of her employment history, undisclosed income sources, and funding for her legal representation.

Highlight that her claim of financial hardship is misleading, given:

- Retention of rental overpayments.
- Ongoing payments for dog nanny.
- Additional undisclosed earnings before reporting her employment at Four Seasons.
- Additional undisclosed support and payments from companions (don't know how to say sugar daddy in nuanced legal jargon)
- She has already paid more in legal fees than I have secured for my own representation, and I had to borrow money to cover my legal costs due to lack of access to capital or credit.

2. TRO Challenge

- Mention that the TRO was granted without notice or an opportunity to respond, violating due process.
- Clarify that Luisa lost access to internal servers and business banking accounts due to misuse, but:
- She should still retain access to her user accounts in platforms like Rocket Legal, TurboTenant, and DoorLoop for any documents/accounts historically assigned to her.
- She should, for example, still have access to pay rent and view lease documents for Morada Mami and other agreements she was party to. and also access to all documents she reviewed and signed.

3. ARIBIA LLC Ownership & Business Standing

- Explicitly state the ownership restructuring date (October 29, 2024) to make it clear that Luisa had no legal claim at the time of the TRO filing.
- Add that Luisa never contributed financially to ARIBIA LLC or took on any business risks, despite benefiting from the LLC.

4. Fraud & Misuse of Funds

- Introduce language stating that Luisa has a pattern of financial misrepresentation, which includes:
- SNAP fraud (unauthorized use of benefits intended for Nicholas).
- Rental assistance fraud (failure to return an overpayment while simultaneously receiving additional assistance).
- Misuse of business funds (unauthorized charges on company accounts for personal expenses).

- Retention of company-funded devices (which she failed to return upon her abandonment of her duties and subsequent removal from the business).
- Highlight that ARIBIA LLC is already bearing ongoing costs due to her failure to follow established operating agreements and amendments, meaning that in addition to the harm she's caused, she's now asking the court to shift her legal fees onto the business or myself personally.
- And the \$400 a month award she's unilaterally given herself and her family in free housing by continuing to not pay the rent to the business on that she guaranteed... and that she and her family continue to use unbothered by conscience or consequence and emboldened by the TRO
- Emphasize that these financial actions further justify denying her request for attorney fees.

5. Due Diligence & Business Impact

- I feel compelled in some way to disclose that I only discovered some of these issues during the process of due diligence in ensuring accurate accounting of both her positive and negative impact on the business.
- As I worked through reconciling financial records, operational disruptions, and internal compliance, it became clear that many of her past actionsâ€”intentional or notâ€”placed continued and incremental strain on the business.
- These actions have directly harmed my personal investment, the businessâ€™s solvency, and even impacted my single, retired mother, who is a stakeholder and on a fixed income.
- At a minimum, I believe the court should be made aware that her actions were not just passive oversights but active failures to uphold her obligations, which I have had to mitigate at every step.

Guidance Request:

Would you advise addressing these points in this response, or would it be more appropriate to incorporate them into the pretrial memo instead? I donâ€™t want to overcomplicate the filing, but I do want to ensure that we aren't allowing falsehoods to remain unchallenged.

I'll defer to your expertise on the best way to proceed. Thank you again for your patience, I genuinely appreciate your guidance in navigating all of this. Send your best and final, and i'll promptly review. Thanks again - and if he got this far, thank you Jonathan.

Best,

Nick

From: Madyson Lehmann <MadysonLehmann@allenglassman.com>
Sent: Wednesday, February 12, 2025 11:51 AM
To: Nick <nick@aribia.llc>
Cc: jonathanschatz <JonathanSchatz@allenglassman.com>; Joseph Lockett <JosephLockett@allenglassman.com>
Subject: RE: Bianchi

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Hi Nick,

Attached is an updated response to her petition for fees. Our next Court date is a pretrial, where we will be submitting a pretrial memo outlining our positions and evidence as to why we believe the court should make certain recommendations. It will be more impactful, and more appropriate, to make the sort of arguments and requests you outlined below in the memo, not in our Responses. Our responses are essentially to admit or deny what Luisa has alleged in her own petition.

We can absolutely issue a full discovery request for interrogatories and production of documents, and even subpoenas if necessary. I do want to advise you that discovery is often very time intensive and costly, but it is something we can do.

Please let me know if you have any questions.

Mady

From: Nick <nick@aribia.llc>

Sent: Wednesday, February 12, 2025 11:27 AM

To: Madyson Lehmann <MadysonLehmann@allenglassman.com>

Cc: Jonathan Schatz <JonathanSchatz@allenglassman.com>

Subject: Re: Bianchi

Subject: Final Revisions – Response to Petition & Financial Position**

Hi Madyson,

Before I sign, the response needs to **fully and explicitly** reflect the financial and legal realities of this case. Opposing counsel is deliberately misrepresenting my financial position, Luisa's access to records, and the circumstances around the TRO. The following updates must be incorporated before submission: Of course using the overlay of needed nuance from legal expertise and experience and the judge in particular.

1. ARIBIA LLC Was Fully Funded by Non-Marital Assets – \$252,547.47 in Contributions

- **Opposing counsel's claim that ARIBIA LLC is a marital asset is categorically false.**
- **My total contributions exceed \$252,547.47, sourced entirely from non-marital funds.**
- **Requested Addition:** The response must explicitly state that **Luisa contributed \$0.00 to the acquisition or operation of ARIBIA LLC** and had no **legal or financial stake** in the entity.
- The financial affidavit must reflect these transactions as **pre-marital capital contributions**, reinforcing that **Luisa has no equitable claim**.
- **Supporting Evidence Available:** Transaction ledgers, LLC filings, capital contribution records.

2. The TRO Was Issued Without Due Process & Based on False Claims

- **I received less than 24 hours' notice (via email at 4 PM for an 8 AM hearing) without prior knowledge or the opportunity for representation.**
- **At the time of the TRO filing (October 31, 2024), ARIBIA LLC had already been transferred to IT CAN BE LLC (October 29, 2024).**
- **Requested Addition:**
 - The court was deliberately misled regarding financial control and

ownership.

- The response must challenge the **TRO's validity on due process grounds** and demand its immediate **vacatur and sanctions for bad faith filings**.
- **Supporting Evidence:** Ownership transfer documents, court records, TRO timeline.

3. Luisa Had Access to Business Records & Communications – She Is Misrepresenting Lack of Access

- **Luisa has unrestricted access to important business records and communications through:**
- **Rocket Legal** – Where she stored, signed, and reviewed key LLC documents
- **Signature Request Logs** – Confirming she received all relevant financial and operational documents
- **TurboTenant & DoorLoop** – Housing all lease agreements tied to her financial obligations.
- **Requested Addition**
 - The response must **directly refute** her claim of lacking access and clarify that her restrictions were implemented **only after multiple unauthorized transactions and financial misrepresentations** on her part.
 - The filing should document that she **maintains historical access** through Rocket Legal and her separate logins.
 - **Supporting Evidence:** Access logs, Signature Request history, leasing platform records.

4. Luisa's Financial Misconduct & Undisclosed Income Must Be Exposed

- **Opposing counsel is positioning Luisa as financially dependent, yet she has not disclosed multiple sources of income:**
- **~\$3,500 in cash payments (June 2024).**
- **Dog nannying income since 2021 (admitted only in late 2024).**
- **Financial support from undisclosed sources, likely funding her legal fees**
- **Requested Addition:**
 - Demand **full forensic financial discovery** into unreported income, including potential contributions to her attorney's fees from external parties.

- The response must note that her claim of financial hardship is **unsupported by documentary evidence**.
- **Supporting Evidence:** Bank records, income deposit analysis, employment verification requests.

5. Attorney's Fees Should Be Denied Based on Misrepresentations & Available Income

- **Opposing counsel is falsely claiming I have exclusive financial control while ignoring Luisa's unreported financial resources.**
- **Luisa has had financial support but is strategically withholding disclosure to claim hardship.**
 - **Requested Addition:**
 - The response should assert that she **has not met the legal standard for an interim attorney's fees award** given her financial omissions.
 - The filing should demand **full transparency of all funding sources for her legal expenses** before any fees are considered.

6. Luisa's Unauthorized Use of SNAP Benefits & Fraudulent Government Claims

- **Luisa fraudulently utilized SNAP benefits that were meant for me, without my knowledge or consent, for months.**
- **These benefits were not hers to claim or use. She likely misrepresented her financial status to access public aid** while simultaneously collecting income from undisclosed sources.
- **Requested Addition:**
 - The response must **clearly state that Luisa used government benefits meant for me for her and her brother's expenses** without authorization.
 - **This misuse of public funds constitutes fraud** and should be documented as further evidence of her financial misconduct.
 - **Supporting Evidence:** SNAP benefit statements, financial transaction records showing unauthorized use.

7. Personal Charges on Business Accounts & Retained Business Assets

- **Luisa charged personal expenses to ARIBIA LLC business credit cards, further burdening the business**
- **She has retained company-funded devices (phones, tablets) that were**

never reimbursed or returned.

— **Requested Addition:**

- These **unauthorized charges and retention of business assets** should be included in the response as **further proof of financial misconduct** and **misuse of company funds**.
- The response should also demand **immediate return or reimbursement of business-funded devices**.
- **Supporting Evidence:** Business purchase reports, transaction logs, records on company device and payments.

8. The TRO Was Used as a Financial Weapon, Further Harming the Business

— **All of Luisa's actions to date have placed continued and incremental strain on the business, jeopardizing its solvency.**

— **She has only ever benefited from her brief membership in ARIBIA LLC, without sharing in the risks or financial burdens.**

— **Her actions have directly harmed my personal investment as well as that of my mother, a retired teacher on a limited income.**

◦ **Requested Addition:**

- The response must explicitly argue that the TRO **was not just a legal maneuver but a calculated effort to financially destabilize the business** while she continued to extract benefits without accountability.
- The **financial harm to third parties, including my mother, must be noted to highlight the broader impact of her misconduct**.
- **Supporting Evidence:** Business financial records, my mother's investment records, transaction logs demonstrating the strain on business cash flow.

9. Luisa Was Notified of the Financial Issues with the Medellín Property & the Business Decision to Sell

— **Luisa received formal notice on September 4, 2024, regarding the outstanding rent on the Medellín property and its impact on ARIBIA LLC's financial reassessment.**

— **She was informed of the proposed payment plan to cover the \$4,000 in unpaid rent** and the consequences of non-payment, including potential legal action and reassessment of her ownership stake.

— **Requested Addition:**

- This memo must be included as evidence to **disprove any claim that Luisa was unaware of the financial necessity behind the property sale.**
- The response should reference that **her family (mother and brother) failed to pay rent despite occupying the property under a lease she verbally guaranteed that she and her other brother would be financially responsible for,** creating a financial shortfall for the business.
- **Supporting Evidence:** September 4, 2024, memorandum, rent payment history, financial reassessment records.

Next Steps

- Confirm that **these critical revisions are fully incorporated before I sign.**
- Ensure we **file for financial discovery** to expose Luisa's **unreported income and potential external legal funding sources.**
- let me know which of the documents you may not have and need, i've previously shared with Jonathan/Joseph, but if you're missing any, let me now which (or what type you might need in addition) and i'll provide
- Let me know when the **final version is ready for review. feel free to text / call etc 8722742421 - please leave text lr vm as i'll receive regardless and can act against it.**

Best,
Nicholas Bianchi

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From: Madyson Lehmann <MadysonLehmann@allenglassman.com>
Sent: Wednesday, February 12, 2025 9:16:24 AM
To: Nick <nick@aribia.llc>
Cc: jonathanschatz <JonathanSchatz@allenglassman.com>
Subject: RE: Bianchi

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Hi Nick,

I reviewed the screenshots that you sent Jonathan, and although they may be helpful down the line, we do not believe that they are needed for our responses.

Attached please find the two pleadings and our two draft responses. Please review and let us know if you have any specific question or edits. If not, we will need you to sign the docusgin copies. These responses are due by end of day today.

Thanks!
Mady

From: Madyson Lehmann
Sent: Tuesday, February 11, 2025 2:10 PM
To: nick@aribia.llc
Cc: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Subject: RE: Bianchi

Hi Nick,

Checking in regarding the responses I sent yesterday. Please let me know if you approve or have any edits/questions.

Thanks!
Mady

From: Madyson Lehmann
Sent: Monday, February 10, 2025 4:07 PM
To: nick@aribia.llc
Cc: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Subject: RE: Bianchi

Quick correction - the responses are due on Wednesday, not today. I have attached the Pleadings to this email which we are responding to. If you have any edits to the responses, please let me know.

Mady

From: Madyson Lehmann
Sent: Monday, February 10, 2025 4:00 PM
To: nick@aribia.llc
Cc: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Subject: Bianchi

Good afternoon,

I just sent over two Responses for you to review and docusign. Please do so as soon as possible, as we need to submit them within the next hour.

Thank you,

Madyson Lehmann
Associate Attorney

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